RISKY CLAUSE PATTERNS

Indian Contract Law Risk Reference

Last Updated: 2025

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All patterns are based on Indian Contract Act 1872, Arbitration and Conciliation Act 1996, IT Act 2000, and Indian court precedents.

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SECTION 1: NON-COMPETE CLAUSES

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LEGAL BASIS:

Section 27, Indian Contract Act 1872 states:

"Every agreement by which any one is restrained from exercising a lawful profession, trade or business of any kind, is to that extent void."

Indian courts have consistently held that post-employment non-compete clauses are void under Section 27. The Supreme Court in Niranjan Shankar Golikari vs Century Spinning (1967) held that only reasonable restrictions during employment are valid, not post-employment restrictions.

--- HIGH RISK PATTERNS ---

PATTERN: Non-compete duration exceeding 1 year after termination

EXAMPLE: "Employee shall not work in any competing business for 3 years after leaving the company."

RISK: Void under Section 27 ICA 1872. Indian courts do not enforce

post-employment non-compete restrictions.
RECOMMENDED: Remove entirely or limit to during employment only.

PATTERN: Non-compete covering entire territory of India
EXAMPLE: "Employee shall not compete anywhere in India for 2 years."
RISK: Geographically unreasonable. Courts have held all-India restrictions as void. Even during employment, geographic scope must be reasonable.
RECOMMENDED: Limit to city or region where employee actually worked.

PATTERN: Non-compete with no geographic limit specified
EXAMPLE: "Employee agrees not to join any competitor after termination."
RISK: Void — no geographic or time limit makes it completely unenforceable.
RECOMMENDED: Remove post-employment restriction entirely.

PATTERN: Non-solicitation of clients for more than 1 year
EXAMPLE: "For 5 years after leaving, employee shall not contact any client of the company."
RISK: High risk of being void under Section 27. Courts treat non-solicitation similar to non-compete.
RECOMMENDED: Limit to 6 months maximum and only to clients employee directly worked with.

PATTERN: Non-compete covering all industries not just direct competitors
EXAMPLE: "Employee shall not work in any technology company for 2 years."
RISK: Overly broad. Must be limited to direct competitors only.
RECOMMENDED: Name specific competitor categories clearly.

--- MEDIUM RISK PATTERNS ---

PATTERN: Non-compete during employment with unreasonable scope
EXAMPLE: "During employment, employee cannot do any freelance work

of any kind."

RISK: May be enforceable but courts look at reasonableness.

RECOMMENDED: Limit to work that directly competes with employer.

PATTERN: Non-solicitation of employees after termination

EXAMPLE: "For 2 years after leaving, you shall not hire any employee
of the company."

RISK: Medium risk — some courts have upheld these but with time limits.

RECOMMENDED: Limit to 6 months and only key employees.

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SECTION 2: TERMINATION CLAUSES

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LEGAL BASIS:

Section 73, Indian Contract Act 1872 — Compensation for loss or damage
caused by breach of contract.

Section 74, Indian Contract Act 1872 — Compensation for breach where
penalty is stipulated.

Industrial Disputes Act 1947 — For employment contracts, additional
protections apply.

--- HIGH RISK PATTERNS ---

PATTERN: Termination without any notice period

EXAMPLE: "Company may terminate this agreement immediately at any time
without notice."

RISK: Extreme risk. Without notice period, terminated party has no time
to prepare. Courts may award compensation for loss.

RECOMMENDED: Minimum 30 days written notice for both parties.

PATTERN: Notice period less than 7 days
EXAMPLE: "Either party may terminate with 3 days notice."
RISK: Courts may find this unreasonable depending on contract value and duration.
RECOMMENDED: Minimum 30 days for service contracts, 90 days for senior employment.

PATTERN: Unilateral termination right for one party only
EXAMPLE: "Company reserves the right to terminate at any time. Vendor cannot terminate without company approval."
RISK: Extremely one-sided. Courts may not enforce entirely one-sided termination clauses.
RECOMMENDED: Make termination rights mutual for both parties.

PATTERN: Termination without payment of dues
EXAMPLE: "Upon termination for any reason, company shall not be liable for any pending payments."
RISK: Void to the extent it waives legally earned compensation. Under Section 73, earned amounts must be paid.
RECOMMENDED: State that all dues earned up to termination date will be paid within 7 days.

PATTERN: Termination with immediate IP seizure
EXAMPLE: "Upon termination, company may immediately seize all work product and equipment without notice."
RISK: Without proper notice and process, this may constitute wrongful seizure under Indian law.
RECOMMENDED: Include reasonable handover period of 7-14 days.

PATTERN: No reason required for termination

EXAMPLE: "Company may terminate for convenience without providing any reason."
RISK: While termination for convenience clauses are valid, they must still include notice period and payment of dues.
RECOMMENDED: Add minimum notice and confirm all earned payments will be made.

--- MEDIUM RISK PATTERNS ---

PATTERN: Different notice periods for each party
EXAMPLE: "Company can terminate with 7 days notice. Vendor must give 90 days notice."
RISK: Courts may view extreme asymmetry as unfair and unenforceable.
RECOMMENDED: Keep notice periods equal or explain reason for difference.

PATTERN: Automatic termination on insolvency without notice
EXAMPLE: "This agreement automatically terminates if either party becomes insolvent."
RISK: Medium risk — such clauses can be challenged under Insolvency and Bankruptcy Code 2016.
RECOMMENDED: Consult lawyer for IBC compliance.

PATTERN: Termination for repeated minor breaches
EXAMPLE: "Three minor breaches shall constitute grounds for immediate termination."
RISK: What counts as minor breach is unclear and subjective.
RECOMMENDED: Define minor breach clearly and include cure period.

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SECTION 3: INDEMNITY CLAUSES

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LEGAL BASIS:

Section 124, Indian Contract Act 1872 — Contract of indemnity defined.

Section 125, Indian Contract Act 1872 — Rights of indemnity holder.

The Supreme Court in Gajanan Moreshwar vs Moreshwar Madan (1942) held that indemnity can be enforced before actual loss is suffered.

--- HIGH RISK PATTERNS ---

PATTERN: Unlimited indemnity with no cap

EXAMPLE: "Vendor shall indemnify Company for all losses, damages, costs and expenses of any nature whatsoever without any limit."

RISK: Unlimited indemnity exposes vendor to catastrophic financial risk. No reasonable business should accept this.

RECOMMENDED: Cap indemnity at total contract value or last 3 months fees.

PATTERN: One-sided indemnity protecting only one party

EXAMPLE: "Vendor shall indemnify Company. Company shall have no indemnity obligation to Vendor."

RISK: Completely one-sided. If vendor suffers loss due to Company's actions, vendor has no recourse.

RECOMMENDED: Make indemnity mutual — each party indemnifies the other for their own acts.

PATTERN: Indemnity for indirect and consequential losses

EXAMPLE: "Indemnity includes direct, indirect, consequential, punitive, special and incidental damages."

RISK: Consequential and indirect losses can be many times the contract value. Courts have upheld such clauses but they are extremely risky.

RECOMMENDED: Exclude indirect, consequential, and punitive damages

from indemnity scope.

PATTERN: Indemnity for third party IP claims without limitation
EXAMPLE: "Vendor shall indemnify Company against any third party intellectual property claims of any kind."
RISK: IP indemnity with no cap or limitation is very high risk. One IP lawsuit can cost crores.
RECOMMENDED: Limit IP indemnity to vendor's own work product only and cap at contract value.

PATTERN: Indemnity surviving termination indefinitely
EXAMPLE: "Indemnity obligations shall survive termination of this agreement indefinitely."
RISK: Unlimited time period on indemnity is dangerous. Exposure never ends.
RECOMMENDED: Limit survival period to 2-3 years after termination.

--- MEDIUM RISK PATTERNS ---

PATTERN: Broad indemnity for regulatory compliance
EXAMPLE: "Vendor shall indemnify Company for all regulatory compliance failures."
RISK: If Company's actions cause regulatory failure, vendor still bears liability. Unfair.
RECOMMENDED: Each party responsible for their own regulatory compliance.

PATTERN: Defense costs included in indemnity
EXAMPLE: "Indemnity includes all legal fees and defense costs."
RISK: Legal fees in complex litigation can exceed contract value.
RECOMMENDED: Cap legal fee reimbursement separately.

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SECTION 4: LIABILITY LIMITATION CLAUSES

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LEGAL BASIS:

Section 74, Indian Contract Act 1872 — Compensation for breach where penalty is stipulated. Courts have power to reduce unreasonable penalties. Unfair Contract Terms principles applied by Indian courts.

--- HIGH RISK PATTERNS ---

PATTERN: No liability cap — unlimited liability

EXAMPLE: "Neither party limits its liability under this agreement."

RISK: While this sounds balanced, it means both parties face unlimited exposure. One serious incident can destroy a business.

RECOMMENDED: Cap total liability at 2x contract value or last 12 months fees whichever is higher.

PATTERN: Company completely excludes all liability

EXAMPLE: "Company shall not be liable for any loss or damage of any kind arising from this agreement."

RISK: Courts may void this as it removes all remedies from one party. Section 23 ICA 1872 — agreements opposed to public policy are void.

RECOMMENDED: Some minimum liability must be maintained.

PATTERN: Liability cap lower than contract value

EXAMPLE: "Total liability of either party shall not exceed Rs. 10,000" in a contract worth Rs. 50 lakhs.

RISK: Completely inadequate. Injured party has no real remedy.

RECOMMENDED: Liability cap should be at minimum equal to contract value.

PATTERN: Excluding liability for gross negligence or fraud

EXAMPLE: "Company shall not be liable even in cases of gross negligence, willful misconduct or fraud."

RISK: Courts will not enforce exclusion of liability for fraud or willful misconduct. This clause may be void.

RECOMMENDED: Always carve out gross negligence and fraud from liability exclusions.

--- MEDIUM RISK PATTERNS ---

PATTERN: Very short claim period

EXAMPLE: "All claims must be raised within 30 days of the incident."

RISK: 30 days is very short. Some damage may not be discovered within this period.

RECOMMENDED: Minimum 6 months claim period, ideally 1 year.

PATTERN: Liability excluded for data breach

EXAMPLE: "Company is not liable for any data breach or loss of client data."

RISK: Under IT Act 2000 Section 43A, companies handling sensitive personal data have strict liability.

RECOMMENDED: Cannot exclude data breach liability under Indian law.

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SECTION 5: CONFIDENTIALITY AND NDA CLAUSES

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LEGAL BASIS:

IT Act 2000 Section 72 — Breach of confidentiality and privacy.

IT Act 2000 Section 72A — Disclosure of information in breach of lawful contract.

Indian Evidence Act 1872 — Trade secrets protection.

--- HIGH RISK PATTERNS ---

PATTERN: Confidentiality with no time limit

EXAMPLE: "The receiving party shall keep all information confidential forever."

RISK: Perpetual confidentiality is very burdensome and may not be enforceable in courts.

RECOMMENDED: Limit confidentiality to 3-5 years after disclosure or termination.

PATTERN: Extremely broad definition of confidential information

EXAMPLE: "All information shared in any form including verbal conversations is confidential."

RISK: Overly broad definition makes it impossible to know what is covered. Courts may void it as vague.

RECOMMENDED: Define confidential information specifically — written, marked as confidential, technical, financial data.

PATTERN: Confidentiality with criminal penalties

EXAMPLE: "Breach of confidentiality shall be treated as a criminal offence."

RISK: Parties cannot make something a criminal offence by contract. Only law can do that. This clause is void.

RECOMMENDED: Remove criminal reference. Specify civil remedies only.

PATTERN: No carve-out for legally required disclosure

EXAMPLE: "Information must be kept confidential even if required

by law or court order."
RISK: Cannot override legal obligation to disclose. This clause
is void to that extent.
RECOMMENDED: Always include carve-out for legally required disclosure
with notice to other party.

--- MEDIUM RISK PATTERNS ---

PATTERN: One-sided NDA — only one party has obligation
EXAMPLE: "Vendor shall keep all Company information confidential.
Company has no obligation regarding Vendor information."
RISK: Completely one-sided. Vendor's own business information
gets no protection.
RECOMMENDED: Make NDA mutual unless specific reason for one-sided.

PATTERN: No return of confidential information clause
EXAMPLE: Confidentiality agreement with no provision for returning
or destroying confidential documents on termination.
RISK: Disclosing party has no assurance their information is
returned or destroyed.
RECOMMENDED: Add obligation to return or certifiably destroy all
confidential information within 30 days of termination.

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SECTION 6: ARBITRATION CLAUSES

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LEGAL BASIS:
Arbitration and Conciliation Act 1996.
Section 7 — Arbitration agreement must be in writing.

Section 11 — Appointment of arbitrators.

Section 34 — Grounds to set aside award.

BALCO case (2012) — Supreme Court ruling on seat vs venue of arbitration.

--- HIGH RISK PATTERNS ---

PATTERN: Arbitration seat outside India

EXAMPLE: "All disputes shall be resolved by arbitration in Singapore under SIAC rules."

RISK: Foreign seat arbitration means Indian courts have limited supervisory jurisdiction. Enforcing award in India may be complex.

RECOMMENDED: For contracts between Indian parties, keep seat of arbitration in India.

PATTERN: One party appoints sole arbitrator

EXAMPLE: "The Company shall appoint the sole arbitrator who shall resolve all disputes."

RISK: This violates principles of natural justice. Courts have set aside awards where one party appointed arbitrator unilaterally. Under Section 12 Arbitration Act, such arbitrator may be ineligible.

RECOMMENDED: Arbitrator to be mutually appointed or appointed by institution like DIAC or MCIA.

PATTERN: No seat of arbitration mentioned

EXAMPLE: "Disputes shall be resolved by arbitration."

RISK: Without seat, jurisdiction is unclear. Post-BALCO, seat determines curial law and court with supervisory jurisdiction.

RECOMMENDED: Always specify seat: "Seat of arbitration shall be [City], India."

PATTERN: Arbitration clause with no time limit for award

EXAMPLE: Arbitration clause with no mention of time limit for completing arbitration.

RISK: Arbitration can drag on for years with no accountability.

RECOMMENDED: Include 12 month time limit for arbitral award as provided under Section 29A of Arbitration Act.

PATTERN: Excluding right to approach courts entirely

EXAMPLE: "Parties waive all rights to approach any court of law."

RISK: Parties cannot completely oust court jurisdiction under Indian law. Section 9 interim relief and Section 34 challenge rights cannot be waived.

RECOMMENDED: Cannot exclude court jurisdiction entirely under Indian arbitration law.

--- MEDIUM RISK PATTERNS ---

PATTERN: Arbitration in inconvenient city

EXAMPLE: "Seat of arbitration shall be Patna" for a contract between Mumbai and Delhi companies.

RISK: Medium risk — inconvenient location increases costs and access to justice issues.

RECOMMENDED: Choose neutral city where both parties can easily attend.

PATTERN: Institutional arbitration without naming rules

EXAMPLE: "Disputes shall be resolved by institutional arbitration."

RISK: Which institution? Which rules? Creates ambiguity.

RECOMMENDED: Specify institution: DIAC, MCIA, ICC, SIAC etc.

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SECTION 7: INTELLECTUAL PROPERTY CLAUSES

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LEGAL BASIS:

Copyright Act 1957 — Ownership of creative works.

Patents Act 1970 — Patent ownership and assignment.

Information Technology Act 2000 — Digital IP protection.

Section 17, Copyright Act — Work made for hire doctrine in India.

--- HIGH RISK PATTERNS ---

PATTERN: Blanket IP assignment with no compensation

EXAMPLE: "All intellectual property created by Vendor during or related to this contract is assigned to Company with no additional compensation."

RISK: If IP is created outside contract scope, this clause may be too broad. No compensation for assignment is common but should be acknowledged.

RECOMMENDED: Limit assignment to IP specifically created for this project. Confirm base fees include IP assignment.

PATTERN: Pre-existing IP of vendor assigned to company

EXAMPLE: "Vendor assigns all IP including pre-existing IP and tools to Company."

RISK: Extremely dangerous for vendor. Vendor loses ownership of their own tools and existing work product.

RECOMMENDED: Clearly carve out vendor's pre-existing IP. Only project-specific IP should be assigned.

PATTERN: Moral rights waiver

EXAMPLE: "Vendor waives all moral rights in all works created."

RISK: Under Indian Copyright Act, moral rights — right of

paternity and integrity — cannot be fully waived. Such waiver
is void under Indian law.
RECOMMENDED: Remove moral rights waiver as it is not valid
under Indian copyright law.

PATTERN: IP assignment surviving termination for all purposes
EXAMPLE: "IP assignment is irrevocable and survives termination
regardless of reason."
RISK: If company breaches contract and terminates, vendor
loses all IP with no recourse.
RECOMMENDED: IP assignment should be conditional on full
payment of all amounts due.

--- MEDIUM RISK PATTERNS ---

PATTERN: License to use vendor tools is too broad
EXAMPLE: "Company has unlimited license to use all vendor tools
for any purpose."
RISK: Vendor's core tools and proprietary software should
have limited license tied to this project only.
RECOMMENDED: Limit license scope to project purpose only.

PATTERN: No IP warranty from company side
EXAMPLE: Vendor must warrant their IP but company provides
no warranty about materials they provide to vendor.
RISK: If company provides infringing materials to vendor,
vendor may face claims.
RECOMMENDED: Both parties should warrant their own IP.

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SECTION 8: GOVERNING LAW AND JURISDICTION CLAUSES

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LEGAL BASIS:

Code of Civil Procedure 1908 — Jurisdiction of courts.

Private International Law principles.

Indian courts follow principle that parties can choose governing law

but cannot completely oust jurisdiction of competent Indian courts.

--- HIGH RISK PATTERNS ---

PATTERN: Foreign governing law for contract between Indian parties

EXAMPLE: "This agreement shall be governed by the laws of England

and Wales."

RISK: For contracts between two Indian parties, foreign governing

law is generally not enforced by Indian courts. Creates uncertainty.

RECOMMENDED: Indian law should govern contracts between Indian parties.

PATTERN: Jurisdiction in court with no connection to contract

EXAMPLE: "Exclusive jurisdiction of courts in Andaman Islands"

for a contract performed in Mumbai.

RISK: Courts may refuse to accept jurisdiction if they have

no connection to the dispute.

RECOMMENDED: Choose court at place of performance or where

main party is located.

PATTERN: No governing law clause

EXAMPLE: Contract with no mention of which law governs or

which court has jurisdiction.

RISK: Creates complete uncertainty. Parties may end up in

expensive litigation just to determine which court applies.

RECOMMENDED: Always include: "This agreement shall be governed
by Indian law and courts at [City] shall have exclusive jurisdiction."

--- MEDIUM RISK PATTERNS ---

PATTERN: Non-exclusive jurisdiction clause
EXAMPLE: "Courts at Delhi shall have non-exclusive jurisdiction."
RISK: Non-exclusive means other courts can also hear disputes.
Creates risk of parallel proceedings.
RECOMMENDED: Use exclusive jurisdiction for certainty.

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SECTION 9: PAYMENT CLAUSES

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LEGAL BASIS:
Section 73, Indian Contract Act 1872 — Loss from breach.
Interest Act 1978 — Interest on delayed payments.
MSME Development Act 2006 — For MSME vendors, payment within 45 days
mandatory, otherwise 3x bank rate interest applies.

--- HIGH RISK PATTERNS ---

PATTERN: Payment terms beyond 45 days for MSME vendor
EXAMPLE: "Payment shall be made within 90 days of invoice."
RISK: If vendor is MSME registered, payment beyond 45 days
attracts compound interest at 3x bank rate under MSMED Act 2006.
RECOMMENDED: Check if vendor is MSME. If yes, payment must
be within 45 days.

PATTERN: Unilateral right to withhold payment
EXAMPLE: "Company may withhold payment at its sole discretion
if it is dissatisfied with work quality."
RISK: No objective standard for withholding payment.
Vendor has no certainty of getting paid.
RECOMMENDED: Withholding only permitted for specific,
defined breaches with opportunity to cure.

PATTERN: No interest on delayed payments
EXAMPLE: Contract with payment terms but no mention of
interest for late payment.
RISK: Without interest clause, delayed payments cost vendor
nothing to the payer.
RECOMMENDED: Include interest at 18% per annum or 3x RBI
bank rate for delayed payments.

PATTERN: Payment contingent on third party approval
EXAMPLE: "Payment shall be made only after client approval
which may take unlimited time."
RISK: If third party never approves, vendor never gets paid.
This is called pay-when-paid clause and is risky for vendors.
RECOMMENDED: Include longstop date — if approval not given
within X days, payment becomes due automatically.

--- MEDIUM RISK PATTERNS ---

PATTERN: Invoice dispute mechanism too one-sided
EXAMPLE: "Company may dispute any invoice and disputed amounts
shall not be paid until resolution."
RISK: If company disputes entire invoice in bad faith,
vendor gets nothing.

RECOMMENDED: Only specific disputed amounts withheld.
Undisputed amounts must be paid on time.

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SECTION 10: FORCE MAJEURE CLAUSES

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LEGAL BASIS:
Section 56, Indian Contract Act 1872 — Agreement to do impossible act.
"A contract to do an act which, after the contract is made, becomes
impossible...becomes void when the act becomes impossible."

--- HIGH RISK PATTERNS ---

PATTERN: Force majeure clause covering normal business risks
EXAMPLE: "Force majeure includes market fluctuations, supply chain
issues, and inability to find staff."
RISK: Courts will not accept normal business risks as force majeure.
Such broad definition dilutes protection for genuine events.
RECOMMENDED: Limit to truly unforeseeable events: natural disasters,
war, government actions, pandemic.

PATTERN: No notice requirement for force majeure
EXAMPLE: Force majeure clause with no obligation to notify
other party within specific time.
RISK: Without notice requirement, parties can claim force majeure
retroactively after failing to perform.
RECOMMENDED: Require notice within 7 days of force majeure event.

PATTERN: Unlimited duration of force majeure suspension

EXAMPLE: "Either party may suspend performance for as long as force majeure continues."
RISK: Contract can be suspended indefinitely with no remedy for other party.
RECOMMENDED: Include termination right if force majeure continues beyond 30-60 days.

--- MEDIUM RISK PATTERNS ---

PATTERN: COVID-19 specifically included or excluded
EXAMPLE: "Force majeure expressly excludes pandemic and epidemic events."
RISK: Exclusion of pandemic may be challenged given COVID-19 experience. Courts may still apply Section 56.
RECOMMENDED: Include pandemic/epidemic in force majeure definition going forward.

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SECTION 11: AUTO-RENEWAL CLAUSES

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--- HIGH RISK PATTERNS ---

PATTERN: Auto-renewal without advance notice requirement
EXAMPLE: "This agreement shall automatically renew for successive one year terms unless terminated."
RISK: Party may not realize contract renewed. Gets locked in for another year without intention.
RECOMMENDED: Require 30 days advance written notice to prevent auto-renewal.

PATTERN: Auto-renewal with price escalation

EXAMPLE: "On auto-renewal, fees shall increase by 20% automatically."

RISK: Automatic significant price increase without negotiation

is one-sided.

RECOMMENDED: Price changes on renewal must be agreed in writing.

PATTERN: Long auto-renewal period

EXAMPLE: "Agreement auto-renews for 3 year terms."

RISK: Missing one notice window locks you in for 3 more years.

RECOMMENDED: Auto-renewal periods should not exceed 1 year.

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SECTION 12: DATA PROTECTION CLAUSES

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LEGAL BASIS:

IT Act 2000 Section 43A — Compensation for failure to protect data.

IT (Amendment) Act 2008.

Digital Personal Data Protection Act 2023 — New law.

IT (Reasonable Security Practices) Rules 2011.

--- HIGH RISK PATTERNS ---

PATTERN: No data protection obligations mentioned

EXAMPLE: Contract involving personal data with no mention

of data protection responsibilities.

RISK: Under DPDP Act 2023, data fiduciaries have strict

obligations. Silence in contract does not remove liability.

RECOMMENDED: Include data processing terms, security obligations,

breach notification within 72 hours.

PATTERN: Sharing personal data without restriction
EXAMPLE: "Company may share user data with group companies
and third parties for any purpose."
RISK: Under DPDP Act 2023, data sharing requires consent
and purpose limitation.
RECOMMENDED: Limit data sharing to specific purposes and
require data processing agreements with all third parties.

PATTERN: Excluding liability for data breach
EXAMPLE: "Company is not liable for any loss arising from
unauthorized access to data."
RISK: Cannot exclude data breach liability under Indian law.
Section 43A IT Act imposes strict liability.
RECOMMENDED: Cannot exclude this liability. Include cyber
insurance requirement instead.

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END OF RISKY CLAUSE PATTERNS
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Source: Based on Indian Contract Act 1872, Arbitration and Conciliation
Act 1996, IT Act 2000, Copyright Act 1957, DPDP Act 2023, and
Indian Supreme Court judgments.
This is a reference document — always consult a qualified lawyer
for specific legal advice.
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